



Appeal Decision

Site visit made on 28 July 2026

by **M Aqbal BA (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal Ref: APP/Y9507/W/25/3362380

Windmill Down Farm, Church Lane, Hambledon, Hampshire PO7 4RT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission under section 73 of the Town and Country Planning Act 1990 (as amended) for the development of land without complying with conditions subject to which a previous planning permission was granted.
 - The appeal is made by Mr M Hill, Allsoils + Ltd against the decision of South Downs National Park Authority.
 - The application Ref is SDNP/23/04750/CND.
 - The application sought planning permission for retention of existing soil recycling facility to import, store, screen blend and transfer inert soils and to import and store bark, sand, manure and compost for the purpose of recovering and recycling soils. without complying with conditions attached to planning permission Ref SDNP/23/02143/FUL, dated 29 August 2023.
 - The conditions in dispute are Nos 4,9, 10 and 14 which state that:
Condition 4: No more than a total of 10,000 tonnes of inert soils, sand, bark, manure and compost a year shall be transported to the site.
Condition 9: There shall be an overall maximum total of 80 vehicle movements (each way) per week and no more than 15 vehicle movements (each way per day).
Condition 10: The overall total vehicle movements hereby permitted by condition 9, shall include a maximum of 45 HGV movements (each way) (over 16.5 tonne) per week and a maximum of 9 HGV movements (each way) (over 16.5 tonne) vehicle movements per day.
Condition 14: The size of vehicle delivering to or exporting material from the site must not exceed an 8 wheel, 4-axle truck with a maximum carry weight of 20 tonnes.
 - The reasons given for the conditions are:
Condition 4: In the interests of the amenity of the area.
Condition 9: The application has been assessed on the basis of the submitted transport information and to limit the volumes of traffic in the interests of amenity of residents on and near the approaches to the site.
Condition 10: To limit the volumes of traffic in the interests of the amenity of residents on and near the approaches to the site.
Condition 14: In the interests of the amenity of the area.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Since the determination of the application, the National Planning Policy Framework has been revised (August 2026) (the revised Framework). I have had regard to the revised Framework in determining the appeal. However, the appeal principally concerns matters relating to landscape character, relative tranquillity and amenity within the South Downs National Park and I have identified no aspect of the revised Framework that materially alters my assessment of those matters.

Background and Main Issue

3. The appeal seeks consent for the variation of Conditions 4, 9 and 14 and the removal of Condition 10 attached to planning permission SDNP/23/02143/FUL (the original planning permission).
4. The original planning permission granted permanent consent for the retention of an existing soil recycling facility involving the importation, storage, screening, blending and transfer of inert soils together with the importation and storage of bark, sand, manure and compost for the purpose of recovering and recycling soils. The permission was subject to a range of conditions governing throughput, stockpiling, vehicle movements, vehicle size and other operational matters.
5. The principle of a soil recycling facility at the site is established through the original planning permission and is not before me. The appeal concerns the acceptability of replacing aspects of the operational control regime attached to that permission.
6. The appeal proposal would increase the annual throughput limit from 10,000 tonnes to 40,500 tonnes; replace the existing restriction of 80 vehicle movements (each way) per week with a restriction of 90 HGV movements (each way) per week, subject to a maximum of 15 HGV movements (each way) per day and no more than 5 articulated HGV movements (each way) per week; remove Condition 10, which presently restricts HGV movements over 16.5 tonnes to a maximum of 45 movements (each way) per week and 9 movements (each way) per day; and increase the permitted vehicle size from an 8-wheel, 4-axle truck with a maximum carry weight of 20 tonnes to vehicles up to 44 tonnes Gross Vehicle Weight.
7. Accordingly, and based on the Council's reason for refusal and the evidence before me, the main issue is whether the proposed variation of Conditions 4, 9 and 14 and removal of Condition 10 would conserve and enhance the landscape character and relative tranquillity of this part of the South Downs National Park and safeguard the amenity of nearby residents and users of the surrounding rural road and rights of way network.

Reasons

8. The appeal site lies within the South Downs National Park in a rural location north of Hambledon. It occupies part of Windmill Down Farm and is accessed via Church Lane, a narrow rural lane connecting with Green Lane and the wider highway network.
9. In particular, the site lies within the Hambledon to Clanfield Downland Mosaic Landscape Character Area, which is characterised by dispersed agricultural land uses, narrow rural roads, historic routeways and a relatively high degree of tranquillity. Church Lane contributes to local landscape character, forms part of the historic rural road network and is used by motorists, walkers and cyclists.
10. Accordingly, the appeal site occupies a highly rural and tranquil location where the character of the landscape and the experience of users of the surrounding lane and rights of way network are important considerations.
11. Conditions 4 and 14 were imposed expressly in the interests of the amenity of the area. Conditions 9 and 10 were imposed to limit traffic volumes in the interests of the amenity of residents on and near the approaches to the site. Throughput,

overall vehicle activity, HGV activity and vehicle size were therefore deliberately regulated through separate conditions.

Condition 4

12. Condition 4 presently restricts annual imports to 10,000 tonnes. The appellant argues that the proposed figure of 40,500 tonnes reflects the throughput that could theoretically arise from the maximum vehicle movement limits contained elsewhere within the permission. I therefore recognise that the proposed figure has not been advanced arbitrarily and that some tension exists between the annual throughput restriction and certain movement controls. However, the original permission nonetheless contains an express annual throughput limit of 10,000 tonnes.
13. Moreover, the permission contains separate controls governing vehicle movements, heavier HGV movements and vehicle size. The appeal proposal would replace those controls with a materially different condition regime, including a substantially higher throughput limit. It must therefore be assessed on the basis of the development that would be authorised by the conditions now proposed.
14. I also note the appellant's submission that the existing throughput restriction is commercially unrealistic and that the proposed amendments are necessary to enable the business to operate more effectively. Whilst I accept that the proposed amendments may provide greater operational flexibility and commercial practicality, limited substantive evidence has been provided to demonstrate the extent to which the existing condition regime is constraining the viability or effective operation of the business. Accordingly, I attach limited weight to the appellant's contention that the existing restriction is commercially unrealistic or is materially constraining the operation of the business. In any event, commercial considerations of this nature do not, in themselves, determine the acceptability of the replacement condition regime, which must be assessed against its effects on the character, tranquillity and amenity of the National Park.
15. Whilst a change in throughput alone would not necessarily result in direct visual harm, particularly given the continuing restrictions on stockpile heights and storage limits, the increased throughput forms an important component of the cumulative changes now sought.

Conditions 9 and 10

16. Condition 9 presently restricts overall vehicle movements, whereas Condition 10 separately restricts HGV movements above 16.5 tonnes.
17. The appellant argues that Condition 10 is unnecessary because activity would remain controlled through revised Conditions 4, 9 and 14. It also relies upon the absence of objection from the Highway Authority.
18. I acknowledge that the Highway Authority raises no objection to removal of Condition 10. However, the principal issue before me is not highway safety but the effect of the proposed changes on landscape character, tranquillity and amenity. The original permission deliberately distinguished between overall vehicle movements and HGV movements. In my view, that distinction remains material because heavier commercial vehicles generally have a greater physical presence and influence on the character and experience of rural lanes than lighter vehicles.

The separate restriction on HGV activity therefore provided an additional mechanism for controlling the nature and intensity of traffic associated with the development. Although there is a relationship between Conditions 9 and 10, the original permission imposed a separate restriction on HGVs over 16.5 tonnes and I attach weight to that distinction.

19. Whilst I have considered the appellant's proposed wording, including the limitation on articulated vehicle movements, the proposal would nonetheless remove the separate restriction currently imposed on HGV movements over 16.5 tonnes and replace it with a materially different regime governing heavier vehicle activity.

Condition 14

20. Condition 14 restricts vehicle size to an 8-wheel, 4-axle truck with a maximum carry weight of 20 tonnes.
21. I note that there are no highway weight restrictions on the route and that the Highway Authority raises no objection to vehicles up to 44 tonnes Gross Vehicle Weight. I also note the appellant's submission that agricultural operations occasionally involve vehicles of a comparable size.
22. However, the issue before me is not whether vehicles of that size can physically use the route, whether in connection with the farm or otherwise. Rather, it is the effect of routinely authorising their use as part of the soil recycling operation.
23. Larger vehicles would generally occupy a greater proportion of the carriageway, be more visually conspicuous within the narrow rural lane network and have a greater physical presence in the experience of residents and users of the surrounding landscape. In a landscape characterised by narrow rural roads, historic routeways and relatively high levels of tranquillity, such vehicles would appear materially more prominent than those currently permitted and would alter the character of traffic associated with the development.
24. The original permission did not rely upon any single control to regulate the operation. Rather, throughput, vehicle numbers, heavier HGV activity and vehicle size were each regulated through separate conditions. The appeal proposal would substantially alter that overall package of controls. Those controls collectively defined the scale and character of the development that was previously found acceptable.
25. Viewed as a whole, the proposal would increase the annual throughput limit from 10,000 tonnes to 40,500 tonnes, replace the existing movement controls with a materially different regime governing HGV activity, remove the separate restriction presently imposed by Condition 10 and permit substantially larger vehicles. Consequently, the resulting permission would authorise a broader operational envelope than that currently approved. It is those planning consequences which must be assessed.

Landscape Character and Relative Tranquillity

26. Policy SD4 of the South Downs Local Plan (LP) seeks to conserve and enhance landscape character, whilst LP Policy SD7 seeks to conserve and enhance relative tranquillity. Policy 4 of the Hampshire Minerals and Waste Plan similarly seeks to ensure that development within designated landscapes protects the purposes and objectives of those designations.

27. I have also had regard to the statutory purposes of National Park designation and the duty to seek to further those purposes. Consequently, I attach substantial weight to the conservation and enhancement of landscape character, scenic beauty and the special qualities of the South Downs National Park.
28. The site has historically been accepted as a small-scale soil recycling operation within a sensitive National Park location. The conditions attached to the original permission formed a fundamental part of the planning balance that justified permanent consent in this sensitive National Park location. They collectively constrained throughput, vehicle numbers, HGV activity and vehicle size, thereby helping to ensure that the scale, intensity and characteristics of the activity remained compatible with the conservation of landscape character, relative tranquillity and rural amenity. In that regard, I note the Landscape Officer's assessment that the operation's acceptability derives from its small-scale nature and that the landscape has limited capacity to absorb increases of the type proposed. That assessment is consistent with the condition regime attached to the original permission, the evidence concerning the character and tranquillity of the surrounding landscape, and my observations during the site visit.
29. I acknowledge that the proposal would involve no physical expansion of the site. There would be no alteration to site boundaries, no increase in approved stockpile heights and little direct visual change to the operational area itself. However, landscape character within a National Park is not defined solely by physical appearance. Experiential qualities including tranquillity, rurality, movement and activity levels contribute significantly to the character of a place and the way in which it is experienced.
30. Relative tranquillity is, in my judgement, a particularly important consideration in this appeal, being both a recognised special quality of the South Downs National Park and a defining characteristic of this landscape. The evidence before me, together with my site visit, indicates that this locality possesses relatively high levels of tranquillity and that this is an important sensitivity of the landscape.
31. I have had regard to the appellant's submissions that the business has operated for many years, that the Highway Authority raises no objection and that the Environmental Protection Officer does not object to the proposal.
32. Nevertheless, the absence of technical objections relating to highway safety, statutory nuisance or environmental protection does not determine the broader planning judgement that must be made regarding tranquillity, landscape experience and National Park purposes.
33. I have limited evidence before me regarding the precise level of throughput and vehicle activity currently occurring at the site. The appellant maintains that actual vehicle movements would not increase and that the proposal would principally provide operational flexibility. However, the appeal falls to be determined on the basis of the development and pattern of activity that could lawfully occur under the conditions now proposed, rather than any particular level of activity currently taking place at the site.
34. In this highly rural setting, tranquillity and the character of the narrow rural lane network are important components of local landscape character. The proposed conditions would authorise substantially greater throughput, the routine use of materially larger vehicles, and a less restrictive regime governing heavier HGV

activity than is presently permitted. In doing so, they would authorise a broader scale and intensity of commercial vehicle activity than is presently permitted within Church Lane and the surrounding route network. I find that the proposal would move beyond the small-scale operation previously accepted in this location. This conclusion is reinforced by my observations during the site visit, which confirmed the notably rural and tranquil character of Church Lane and the surrounding landscape. Having regard both to those observations and to the Landscape Officer's assessment referred to above, I find that these changes would erode the sense of rurality and relative tranquillity that are important characteristics of this landscape and would fail to conserve them.

35. The appellant argues that users of the public rights of way network would not be materially affected because there would be no direct conflict between site traffic and users of Public Right of Way 104/37/1. Nevertheless, my concern is not limited to interactions at any single point. Users of nearby rights of way, including Public Right of Way 104/37/1, would also experience Church Lane and the surrounding rural lane network as part of their journeys through the landscape. Their appreciation of this part of the National Park is not confined to the point where a right of way meets the highway, but extends to the character, tranquillity and rural qualities of the surrounding area more generally. Accordingly, the effects I have identified would be experienced not only by nearby residents but also by walkers, cyclists and other users of the surrounding rural road and rights of way network.
36. Having regard to the cumulative effect of the increased throughput, altered HGV controls and larger vehicles, I find that the proposed conditions would authorise a substantially different pattern and scale of activity from that presently permitted. In the context of this highly tranquil rural landscape, this would diminish the sense of rurality, remoteness and relative tranquillity experienced by users of the landscape and route network. I therefore conclude that the proposal would fail to conserve and enhance landscape character and relative tranquillity and would conflict with Policies SD4 and SD7 of the LP and Policy 4 of the Hampshire Minerals and Waste Plan.

Amenity

37. Conditions 4, 9, 10 and 14 were imposed specifically in the interests of amenity and to limit the effects of traffic associated with the development.
38. In this highly sensitive rural location, the greater scale and intensity of activity that could lawfully occur under the proposed condition regime, together with the authorisation of larger vehicles and a less restrictive regime governing heavier HGV activity, would detract from the rural character, relative tranquillity and amenity presently experienced by those living along the approach routes and by walkers, cyclists and other users of the surrounding route network.
39. I therefore conclude that the proposal would harm the amenity value of Church Lane and the surrounding rural route network. The proposal therefore conflicts with LP Policy SD20, which seeks to conserve and enhance the amenity value and tranquillity experienced by users of non-motorised routes, and LP Policy SD21, which seeks to ensure that development does not diminish the amenity value and character of historic rural roads through the effects of additional traffic and related activity.

Other Matters

40. Whilst I have had regard to the highway evidence, highway safety does not form part of the reason for refusal and the absence of a highway objection does not outweigh the harm I have identified.
41. I attach significant weight to the benefits arising from the continued operation of the facility, including its contribution to waste recovery, employment and the local economy.

Planning Balance and Conclusion

42. The original permission reflected a planning balance whereby the continued operation of the facility was accepted subject to controls that limited its scale and intensity within this sensitive National Park location.
43. For the reasons set out above, I conclude that the proposed condition regime would fail to conserve and enhance landscape character and relative tranquillity and would harm the character of the historic rural road network and the amenity experienced by users of the surrounding route network.
44. Having regard to the statutory purposes of National Park designation, the requirement to seek to further those purposes, and the importance of tranquillity as a recognised special quality of the South Downs National Park, the identified harm outweighs the benefits of the proposal.
45. Accordingly, the proposal conflicts with the development plan as a whole. There are no material considerations which indicate that a decision should be made other than in accordance with it.
46. For the above reasons, I conclude that the appeal should be dismissed.

M Aqbal

INSPECTOR